Form P: Standard Form of Lease

(Residential Tenancies Act, R.S.N.S. 1989, c. 401)

NOVA SCOTIA

1. Parties

This agreement is made in duplicate between

Landlord (company or first name, initial, last name)

_____

Street number and
name (civic address) _____

Mailing address _____

Apartment _____ City or town _____ Postal code _____

Phone (home) _____ Phone (business/other) _____

and

Tenant (first name, initial, last name) _____

Tenant (first name, initial, last name) _____

Tenant (first name, initial, last name) _____

2. Occupants

Other adults or children who will occupy premises (first name, initial, last name)

_____

_____

_____

_____

Only those tenants and occupants named are allowed to live in the premises without written consent of the landlord.

3. Premises

The landlord will rent to the tenant and the tenant will rent from the landlord the premises at the following location:

Street number and
name (civic address) _____

Apartment _____ City or town _____ Postal code _____

Type of property (specify)

_____

Tenant's mailing address
P.O. box (if applicable) _____ Postal code _____

Tenant's phone (home) _____ Tenant's phone (business/other) _____

4. Emergency contact

Next of kin (name) _____

Phone # (work) _____ (home) _____

5. Agent

The current agent for the landlord is (first name, initial, last name)

Name _____

Cvic address/mailing address _____

Phone # (work) _____ (home) _____

6. Property manager

The current property manager for the landlord is

Name _____

Street number and
name (civic address) _____

Apartment _____ City or town _____ Postal code _____

Phone _____

7. Building superintendent

The current superintendent for the building is

Name _____

Street number and
name (civic address) _____

Apartment _____ City or town _____ Postal code _____

Phone _____ Phone (emergency) _____

8. Email address for service of documents by landlord on tenant (optional)

The Tenant(s) agree(s) to provide the following email address(es) to receive service of documents from the landlord:

Email address _____

Email address _____

Email address _____

The tenant(s) may change the email address by serving written notice of the new email address to the landlord in accordance with subsection 15(1) of the Act.

If the tenant provides an e-mail address under this clause and the landlord serves any documents on the tenant by sending them electronically, the landlord must

(a) send the documents to the e-mail address that was most recently provided by the tenant in accordance with this clause; and

(b) send the documents from the email address that was most recently provided by the landlord in accordance with clause 9 of this lease.

9. Email address for service of documents by tenant on landlord

The landlord must provide and email address to receive documents if the tenants have provided one.

The landlord agrees to provide the following email address to receive service of documents from the tenant:

Email address _____

The landlord may change the email address by serving written notice of the new email address on at least one of the tenants listed in this lease in accordance with subsection 15(2) of the act.

If the landlord provides an e-mail address under this clause and the tenant serves any documents on the landlord by sending them electronically, the tenant must

(a) send the documents to the email address that was most recently provided by the landlord in accordance with this clause; and

(b send the document from the email address that was most recently provided by the tenant in accordance with clause 8 of this lease.

10. How to serve

All Notices to Quit or service of documents, except Applications to the Director, must be in writing and served in accordance with Section 15 of the Act.

Applications to the Director must be served in accordance with subsections 13(2A), (2AA), (2B) and (2C) of the Act.

11. Lease type (complete ***either 11A*** *for periodic lease or* ***11B*** *for fixed-term lease, but* ***not both***)

11A Periodic lease

The tenancy is to start on the (date) _____ day of (month) _____, 20____, and this is the anniversary date as defined in the Act.

The term is to run (check one)

❑ year-to-year

❑ month-to-month

❑ week-to-week

and the tenancy continues until the landlord or the tenant gives proper notice to terminate.

11B Fixed-term lease

The tenancy is for a fixed-term, beginning on

the (date) _____ day of (month) _____, 20____,

and ending the (date) _____ day of (month) _____, 20____.

Any continuation of the tenancy at the end of a fixed-term requires the written consent of the landlord. At the end of the fixed-term, the tenancy is finished and the tenant must vacate.

12. Public housing (check if applicable)

❑ The residential premises are administered under a public housing program as defined in clause 2(fb) of the Residential Tenancies Act. Program eligibility requirements and rules relating to changes in rent are contained in Schedule _____, attached.

- Where if a landlord administers a public housing program, a tenant shall provide income verification in the form required by the public housing program.
- Tenants in a public housing program are not permitted to sublet the premises.

13. Rent

The tenant will pay rent of $_____

per ❑ week
❑ month

by ❑ cash
❑ pre-authorized automatic withdrawal
❑ post-dated cheques
❑ cheque
❑ other (specify) _____

Rent is due on the _____ **day of each month/week and**

is payable to _____.

A late payment fee, if any, will be charged at no more than 1% per month of the monthly rental.

14. Rent increases

The landlord shall not increase the rent under this lease for 12 months.

The landlord shall not give a notice of rent increase that provides for a different rent increase amount if the lease is renewed for a different type of term.

The landlord must give a written notice to the tenant of an increase:

(a) 4 months before the the effective date of the increase for a month-to-month or year-to-year lease
(b) 8 weeks before the the effective date of the increase for a week-to-week lease
(c) 7 months before the anniversary date of a manufactured home space lease

Note: The landlord may select a date to be the annual rent increase date for all manufactured home spaces owned or managed by the landlord. If an annual rent increase date is used, notice must be given 7 months before this date. The landlord must serve the notice of rent increase on the tenants of the land-lease community.

Where the landlord administers a public housing program and the amount of the tenant's rent is increased solely on the basis of an increase in income, the restrictions on frequency of rental increases and notice requirements do not apply.

15. Rental incentive (if any)

In signing this lease, the landlord grants to the tenant the following incentives, which will remain in effect for the duration of the lease:

_____

_____

_____

The tenant is not required to repay or return any rental incentive if he or she terminates the lease before the end of the term in accordance with the Residential Tenancies Act or sublets or assigns the residential premises to a tenant with the consent of the landlord.

16. Rent includes

The rent includes:

Appliances
- ❑ stove
- ❑ fridge
- ❑ washer & dryer
- ❑ dishwasher
- ❑ furniture

Utilities
- ❑ washer and dryer (coin operated)
- ❑ cable service
- ❑ heat
- ❑ water
- ❑ hot water
- ❑ electricity
- ❑ parking: # of spaces _____ ; space # _____
- ❑ facilities to separate recyclables, organics and refuse

Other (specify)
- ❑ lawn care
- ❑ snow removal
- ❑ garbage removal
- ❑ _____
- ❑ _____
- ❑ _____
- ❑ _____
- ❑ _____

The landlord is responsible for providing these services and the discontinuance of a service is deemed to be a rental increase.

The tenant is responsible for the following
- ❑ lawn care
- ❑ late payment charges
- ❑ snow removal
- ❑ returned cheque charges not to exceed _____
- ❑ garbage removal
- ❑ parking @ _____ /month for _____ spaces
- ❑ tenant insurance
- ❑ locked out charges/keys not to exceed _____
- ❑ separation of recyclables, organics and refuse
- ❑ assignment/sublet expenses incurred (not to exceed $75)

17. Additional obligations

_____

_____

_____

18. Security deposit

❑ **A security deposit is not required.**

OR

❑ **A security deposit of** _____ (not to exceed 1/2 month's rent)
will be deposited for the tenant by the landlord at (financial institution/branch)

_____

in a trust account within 3 days of its receipt, and will be returned to the tenant with interest within 10 days of the termination of this lease. The landlord must file a security deposit claim form in accordance with Section 12A of the Act within 10 days of the termination of the lease if the deposit is not returned.

19. Inspection

An inspection of the premises and the preparation of a written inspection report signed by the landlord and tenant no later than 7 days after the start of the tenancy and no later than 7 days after the end of the tenancy is recommended. If a report is prepared it shall form part of the lease.

❑ An inspection report is attached to the lease.

❑ An inspection report is not attached.

20. Statutory conditions and reasonable rules

The landlord and tenant promise to comply with the statutory conditions set out in Schedule A.

❑ (check if applicable) The rules of the building are attached to this lease as Schedule _____

21. Assigning or subletting premises

The tenant may assign or sublet the premises, subject to the consent of the landlord. The landlord may not arbitrarily or unreasonably withhold consent or charge for consent unless the landlord has actually incurred expense in granting the consent.

22. Rental arrears

In a fixed-term, year-to-year or month-to-month tenancy, where the tenant has not paid the rent on or before the 3rd day after the rent is due, on or after the 4th day after the rent is due the landlord may give to the tenant Notice to Quit. The Notice to Quit is to be effective not earlier than the 10th day after the date the Notice to Quit is given to the tenant. Not later than 10 days after receiving the Notice to Quit, the tenant may

(a) pay to the landlord the rent that is in arrears, and on the payment of that rent the Notice to Quit is void and of no effect and this lease continues; or

(b) apply to the Director for an order setting aside the Notice to Quit.

If the tenant does not pay the rental arrears or make an Application to the Director by the end of the 10th day after receiving the Notice to Quit, the tenancy is terminated and the tenant must vacate the premises by the effective date of the notice.

In a week-to-week tenancy, where the tenant has not paid the rent on or before the 7th day after the rent is due, on or after the 8th day after the rent is due the landlord may give to the tenant Notice to Quit. The Notice to Quit is to be effective not earlier that the 7th day after the date the Notice to Quit is given to the tenant.

23. Tenant's notice to quit (except fixed-term)

All notices to quit for a tenancy other than a fixed-term must be given by the tenant in writing in accordance with the following table

Type of Tenancy	Notice Period
❑ year-to-year	at least 3 full months before the end of any year (a year for this purpose begins on the anniversary date) OR if the tenant receives a notice of rent increase, at least 3 full months before the effective date of the rent increase.
❑ month-to-month	at least 1 full month before the end of any month
❑ week-to-week	at least 1 full week before the end of any week
❑ manufactured home space	at least 1 full month before the end of the tenancy

If the notice is to be given based on a period of 1 or more months, the notice must be given before the day of the month that rent is payable under this lease.

24. Landlord's notice to quit

A landlord may not give a notice to quit except in accordance with Section 10 of the Residential Tenancies Act.

25. General

This lease is for the benefit of and is binding on the landlord and tenant and their heirs, executors, administrators, assigns and personal representatives.

26. Tenants responsible for complying with terms and conditions

Any or all tenants signing this lease take full responsibility for complying with all of its terms and conditions.
Attachments (initials required)

1 _____ At least one tenant has received a copy of the Act in the following form:
(check applicable box)
- ❑ paper copy
- ❑ electronic copy
- ❑ web address for copy published online

https://nslegislature.ca/sites/default/files/legc/statutes/residential%20tenancies.pdf

within 10 days of the earliest of:
(a) the date specified in the lease as the start of the tenancy;
(b) signing the lease;
(c) receiving keys to the premises;
(d) taking possession of or occupying the premises.

2 _____ _____ _____ _____ All tenants have received a copy of the signed lease within 10 days of the date of the signing of the lease.

3 _____ _____ _____ _____ All tenants have read, signed and received the rules and attachments to this lease.

Sign both copies separately. Before you sign, please read the following notice.

TENANTS - GIVING NOTICE

IF YOU WISH TO TERMINATE A YEAR-TO-YEAR LEASE AT THE END OF THE LEASE TERM, the law requires that you must give at least 3 months' written notice on or

before _____ (notice date—3 months prior to anniversary date).

Otherwise, the lease will automatically be renewed for another year.

IF YOU ARE IN A YEAR-TO-YEAR LEASE AND YOU RECEIVE A NOTICE OF RENT INCREASE FROM YOUR LANDLORD, you may terminate the lease by giving at least 3 months' written notice before the effective date of the rent increase.

IF YOU WISH TO TERMINATE A MONTH-TO-MONTH LEASE OR A MANUFACTURED HOME SPACE LEASE, you must give at least 1 full month's written notice before the expiration of any such month.

IF YOU WISH TO TERMINATE A WEEKLY TENANCY, you must give 1 full week's written notice before the expiration of any such week.

Sign and date TWO copies of this lease.

Date (YYYY MM DD) _____ Landlord's signature _____

ANY OR ALL TENANTS SIGNING THIS LEASE TAKE FULL RESPONSIBILITY FOR COMPLYING WITH ALL OF ITS TERMS AND CONDITIONS.

Date (YYYY MM DD) _____ Tenant's signature _____

Date (YYYY MM DD) _____ Tenant's signature _____

Date (YYYY MM DD) _____ Tenant's signature _____